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How legal mobility works

An introduction to who sets the rules for moving to the EU, the difference between visas and permits, which authorities decide, and the usual steps to apply.

AUDIENCE	PUBLISHED	OWNER
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Moving from India to the European Union (EU) to work, study or do research is possible through legal, official routes. But the rules are not made in one place. Some are set at EU level and apply in most EU countries, while others are decided by each country on its own. This page explains who does what, the main types of visa and permit, and the usual steps. It is general guidance, not legal advice.

What the EU sets

The EU and its Member States share responsibility for immigration. The EU has agreed common rules, written as *directives*, for several groups of people coming from outside the EU. Each EU country then puts these rules into its own national law. The main ones are:

- **EU Blue Card** for highly qualified workers (Directive (EU) 2021/1883).
- **Single permit**, one combined permit to live and work, obtained through one application procedure (Directive (EU) 2024/1233).
- **Students and researchers**, including trainees and volunteers in some cases (Directive (EU) 2016/801).
- **Intra-corporate transfer (ICT)** for managers, specialists and trainee employees moved by their employer to an EU branch of the same company or group (Directive 2014/66/EU).
- **Family reunification** for family members joining a non-EU national who lives legally in the EU (Directive 2003/86/EC).
- **Long-term residence** for people who have lived legally in an EU country for a longer period (Directive 2003/109/EC).

These directives set minimum standards and common conditions, such as what an applicant must show and what rights a permit holder has. They do not create one EU visa or one EU office where you apply.

Denmark and Ireland: according to the EU Immigration Portal, Denmark does not apply the EU rules on immigration, and Ireland decides case by case whether to take part. EU-wide information on the Portal therefore covers 25 of the 27 EU countries. If you are interested in Denmark or Ireland, check their national rules directly.

What each country decides

Even where EU rules exist, each Member State keeps important decisions for itself. For example, each country:

- decides how many people from outside the EU it admits to look for work;
- makes the final decision on every individual application;
- runs its own national permits for cases not covered by EU rules, such as many skilled-worker, job-seeker or self-employment routes;
- sets its own procedures, forms, fees and, within the limits of EU law, detailed conditions such as salary thresholds.

This is why the same type of permit can look different from one country to another. Always check the rules of the specific country you are interested in. Our country pages are a starting point.

Visa or permit? Three terms to know

- **Short-stay (Schengen) visa:** for visits of up to 90 days in any 180-day period, for example tourism, business meetings or conferences. Common rules are set by the EU Visa Code (Regulation (EC) No 810/2009). A short-stay visa is not a work permit and is not meant for moving to the EU.
- **Long-stay national visa (often called a "D visa"):** for stays of more than 90 days. As the European Commission explains, visas for stays exceeding 90 days follow national procedures. It is often used to enter the country, after which you may need to get a residence permit.
- **Residence permit:** the document that allows you to live in the country for a longer period, and in many cases to work or study there. Depending on the country and permit, it may be applied for from India before travel, or after arrival.

Who decides

Several official bodies can be involved, and their roles vary by country:

- **Embassies and consulates** of the destination country in India receive visa applications, sometimes through an official visa application centre.

- **Immigration or migration offices** in the destination country decide on residence permits, or issue them after you arrive.
- **Labour or employment agencies** may check a job offer, salary or working conditions, and in some cases whether the job can be filled locally (see our page on the labour market test).
- **Recognition bodies** assess foreign degrees and professional qualifications when this is required (see recognition of qualifications).

Only these official authorities can issue a visa or permit. Private agents, recruiters or consultants cannot.

The typical sequence

Details differ, but most applications follow a similar path:

1. **Purpose:** decide why you are moving: work, study, research or joining family.
2. **Pathway:** find the permit that matches your purpose and the country, such as an EU Blue Card or a national work permit.
3. **Documents:** collect what the official checklist asks for, such as a job contract, admission letter or hosting agreement, and prepare translations and certifications.
4. **Apply through the official channel:** the embassy, consulate, visa centre or immigration authority named on the official website. In some countries the employer or host institution starts part of the process.
5. **Decision:** the authority reviews the application and decides. Processing times vary.
6. **Arrival formalities:** after arrival you may need to register your address, collect your residence permit card or complete other local steps.

No one can guarantee a visa

Every decision is made by the authorities, case by case. No agent, recruiter, website or tool, including this Gateway, can promise that you will get a visa or permit. Be wary of anyone who offers a "guaranteed visa" or asks for large fees for a job. Our recruitment red-flags checklist and candidate rights page explain what to watch for.

How the Gateway helps

The EU–India Legal Gateway gives guidance and signposting to official sources. It does not decide applications or give legal advice. You can:

- use EU Predict to see pathways that may be relevant to you, based on a few questions;
- use the Visa Wizard to explore possible visa routes for Austria, Germany, France, Italy, Finland, Sweden, Spain, Estonia, Lithuania and Latvia;
- prepare with our visa readiness checklist;
- find the right authorities through our official sources page.

Always confirm the final requirements with the official authority before you apply.

Where to check

- EU Immigration Portal
- EU Immigration Portal: Who does what?
- EU Immigration Portal: What category do I fit into?
- European Commission: EU visa policy
- Gateway official sources

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